

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

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SUBJECT: Civil Rights Compliance Review	DATE: August 26, 2022
OPI: Office of the Assistant Secretary for Civil Rights	EXPIRATION DATE: August 26, 2027

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1. PURPOSE

This Departmental Regulation (DR) establishes the United States Department of Agriculture (USDA) policies and procedures for conducting civil rights compliance reviews of all USDA federally conducted and federally assisted programs and employment.

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This DR supersedes Departmental Manual (DM) 4330-001, *Procedures for Processing Discrimination Complaints and Conducting Civil Rights Compliance Reviews in USDA Conducted Programs and Activities*, dated October 18, 2000.
- b. This DR is effective immediately and remains in effect until it is superseded or expires.

- c. All USDA Mission Areas, agencies, and staff offices will align their policies and procedures with this DR within 6 months of the publication date.

3. SCOPE

This DR applies to all USDA personnel responsible for performing compliance reviews of federally conducted and federally assisted programs, and employment.

4. POLICY

- a. Per Federal civil rights laws and USDA civil rights regulations and policies, USDA, Mission Areas, agencies, staff offices, employees, and entities participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, religion, sex, disability, age, marital status, familial or parental status, income derived from a public assistance program, political beliefs, genetic information, or reprisal or retaliation for prior civil rights activity, in any program or activity conducted or funded by USDA (not all bases apply to all programs).
- b. All Mission Areas, agencies, and staff offices will ensure their programs receiving Federal financial assistance are in compliance with all applicable policies of non-discrimination.
- c. All Mission Areas, agencies, and staff offices will ensure their employment activities and federally conducted programs are in compliance with all applicable policies of non-discrimination.
- d. Mission Areas, agencies, staff offices, and the Office of the Assistant Secretary for Civil Rights (OASCR) will maintain a regular enforcement program that will:
 - (1) Provide technical guidance and assistance to resolve civil rights problems and issues associated with USDA's federally conducted and federally assisted programs and employment;
 - (2) Monitor and evaluate whether Mission Areas, agencies, and staff offices meet their obligations to ensure federally conducted and federally assisted programs, and employment activities, are administered according to applicable civil rights requirements; and
 - (3) Conduct compliance reviews of federally conducted and federally assisted programs and employment activities guided by legal standards, policies, and requirements established in Federal statutes, regulations, Executive Orders, policies, and case law decisions on discrimination.
- e. The Office of the Inspector General (OIG) has its own internal compliance review program but will coordinate with OASCR as necessary and appropriate.

5. COMPLIANCE METHODOLOGY

Mission Areas, agencies, staff offices, and OASCR will ensure all equal employment opportunity (EEO) and equal opportunity (EO) programs and activities are conducted, managed, and administered in a non-discriminatory manner. One of the major tools utilized to accomplish this task is the civil rights compliance review. These reviews are systematic, planned examinations conducted to assess and evaluate the policies, procedures, and practices to determine compliance with applicable civil rights statutes, regulations, standards, and policies. The primary goal is to obtain compliance with these requirements.

a. Criteria

The decision to conduct a compliance review will be based on neutral criteria or evidence of a violations of civil rights authorities. Criteria to be considered in a civil rights compliance review include:

- (1) Compliance with civil rights obligations in strategic plans, annual work plans, plans of operations, etc.;
- (2) Noncompliance allegations or concerns raised by program applicants, participants, and stakeholders;
- (3) Geographic areas where civil rights allegations or concerns have been identified;
- (4) Civil rights violations alleged in complaints or identified during examination of complaints that could not be fully covered within the scope of the complaint examination process;
- (5) Civil rights compliance concerns or problems raised by community groups, advocates, congressional inquiries, and fact-finding examinations;
- (6) Civil rights compliance concerns identified by the Mission Area, agency, or staff office head or regional and State leadership officials;
- (7) Civil rights compliance concerns identified by other Federal, State, or local civil rights agencies;
- (8) Routine review cycle driven by the need to review all programs and activities on a regular schedule or in a specific geographic area where no or minimal compliance reviews have occurred; and
- (9) Required as a result of terms required in a settlement agreement.

b. Mandatory Elements

At a minimum, the following areas will be covered in a compliance review:

- (1) Civil rights resources, i.e., staff, supplies, equipment, and budget;

- (2) Civil Rights Training based on Federal, State, and Departmental civil rights laws, policies, and Executive Orders. Required civil rights training (based on their specific time frames and as applicable) will include the following training elements, but not be limited to:
 - (a) Public notifications and outreach, i.e., USDA [DR 4300-003](#), *Equal Opportunity Public Notification Policy*;
 - (b) Data collection systems as required by the applicable civil rights authorities;
 - (c) Complaints processed in equal opportunity and employment programs and activities; and
 - (d) Trend analysis on complaint activity or allegations of noncompliance and program participation.
- (3) Program availability and accessibility to Persons with Disabilities. Discrimination based on disability is prohibited in all services, programs, and activities provided to the public by Recipients of Federal financial assistance. A compliance review shall evaluate policies, practices and procedures to determine if any of their effects could discriminate against persons with disabilities. A compliance review also shall, at a minimum, ensure that:
 - (a) USDA facilities are accessible to the public, and when they are not, ensure effective means and actions are in place to address these concerns and provide necessary services to those who cannot access the facility;
 - (b) Newly designed and constructed or altered facilities, and public accommodations are readily accessible to and usable by persons with disabilities;
 - (c) Auxiliary aids and services are provided for those who may need special assistance if doing so does not fundamentally alter the nature of the program;
 - (d) Assistance animals (service, therapy, and emotional support animals) are allowed, as appropriate, to accompany program participants into areas where animals are typically not allowed;
 - (e) Accommodations are provided for persons with visual and other disabilities (such as large print maps, braille, or brochures;
 - (f) Sign language interpreters are provided free of charge for widely attended meetings and events;
 - (g) Websites, online application systems, social media and other electronic forms of communication are accessible to individuals with visual and other disabilities; and
- (4) Signed assurance agreements (if applicable);

- (5) Service to Limited English Proficiency (LEP), i.e., persons who do not speak English as their primary language or have a limited ability to read, write, speak, or understand English are LEP, and are entitled to language assistance with respect to a particular type of benefit, service, or encounter. Refer to [DR 4330-005](#), *Prohibition Against National Origin Discrimination Affecting Persons with Limited English Proficiency in Programs and Activities Conducted by USDA*, or [7 CFR Part 15 Subpart A](#), *Nondiscrimination in Federally-Assisted Programs of the Department of Agriculture – Effectuation of Title VI of the Civil Rights Act of 1964*, for additional information and requirements; and
 - (6) Program delivery and contracting opportunities.
- c. Methodology for Conducting Compliance Reviews
- (1) On-site Visits – A review or examination conducted in person at the regional, state, local, or sub-recipient level;
 - (2) Desk Audit or Virtual Audit – The audit process follows the same steps outlined in an on-site visit except for it not being conducted at the physical location, site or entity; and
 - (3) Surveys – Individual survey interviews will be used as a tool to provide feedback on employment or program awareness or work-related issues. The survey will be administered by the Mission Area, agency, staff office or OASCR to randomly selected employees or customers to acquire an assessment of “corporate culture.”
- d. Essential Steps in Compliance Reviews

There are five essential steps in a compliance review, at a minimum:

- (1) Notification and Documentation Request which will include:
 - (a) Notice to reviewee including date(s) of the compliance review and request for contacts;
 - (b) Data and information necessary for review prior to the onsite; and
 - (c) Date when requestor must receive the data and information.
- (2) Entrance Conference – A meeting conducted with the reviewee to discuss the purpose and methodology before the review commences. The meeting will be in person if onsite or may be conducted electronically using other methods (e.g., telephone, video conference);
- (3) Onsite Visit, Desk or Virtual Audit – A review or examination conducted at the regional, state, local, or sub-recipient level;
- (4) Exit Conference – A meeting conducted at the conclusion of the review or examination to discuss observations and issues of non-compliance requiring

corrective action. The meeting will be in-person if onsite or may be conducted electronically using various methods (i.e., telephone, video conference); and

- (5) Review Report – A written report, letter, agreement, or form summarizing the findings and observations and whether the entity reviewed is in compliance with all applicable policies of non-discrimination in operation of its programs and activities. Findings will result in required corrective actions that assist in resolving the issue and restoring compliance.

6. TIMEFRAMES FOR THE COMPLIANCE REVIEW PROCESS

- a. The Mission Area, agency, or staff office will issue a notice to the program or recipient up to 60 calendar days prior to the date that the compliance review activities will commence. The notice will advise the reviewee of the date(s) of the compliance review, the data and information necessary for review prior to the onsite review, and the date on which the requesting Mission Area, agency, or staff office must receive the data and information;
- b. The Mission Area, agency, or staff office will conduct a review within 30 calendar days of the entrance meeting or conference of the entity reviewed (See Section 5c, *Methodology for Conducting Compliance Reviews*, of this DR). The exit meeting or conference will be conducted at the end of the review. Additional days may be required per Mission Area, agency, or staff office specific guidelines and instructions;
- c. The Mission Area, agency, or staff office will notify the program or recipient in writing of the findings of the compliance review within 90 calendar days following the completion of the compliance review and receipt of all requested documents and information. Additional days may be required per Mission Area, agency, or staff office specific guidelines and instructions, or at the direction of the Mission Area, agency, or staff office Civil Rights Director; and
- d. Within 30 calendar days following receipt of the review report, letter, agreement, or form, the program or recipient will provide a Corrective Action Plan outlining the actions it will undertake and the timeframes to remedy any areas of concern or findings of non-compliance. Additional days may be required for combined reviews per Mission Area, agency, or staff office specific guidelines and instructions, or at the direction of the Mission Area, agency, or staff office Civil Rights Director.

7. TYPES OF COMPLIANCE REVIEWS

- a. Employment Compliance

EEO Compliance Reviews will be conducted to ensure and determine:

- (1) The level of employee awareness of the EEO laws within their employment. The employee's awareness should include policy, process, procedure, as well as

“comfort” levels associated with using EEO tools to file a complaint or assess an employee’s satisfaction with the existing conditions and training opportunities;

- (2) An analysis of the workforce with the Civilian Labor Force, such as utilizing the current U.S. Equal Employment Opportunity Commission (EEOC) Management Directive [\(MD\) 715](#), *Equal Employment Opportunity* data to determine parity within the various categories. This may include areas where high employment rates are achieved in traditionally under-represented categories, the organizational structure, recruitment and hiring, employee development, training and recognition;
- (3) Trends identified through an analysis of employment complaints filed over a period of 3 years or as applicable; and
- (4) Whether Federal government owned and leased buildings and facilities are accessible to employees with disabilities as established by the *Architectural Barriers Act (ABA)* of 1968. This includes but is not limited to: accessibility of entrance doors, entrance vestibules, interior doors, corridors, restrooms, telephones, text telephone, Teletypewriter (TTY), drinking fountains, visible and audible alarms, signage, wheelchair seating in assembly areas and dining facilities, service counters, and ramps or elevators where changes in level are necessary.

b. Federally Conducted and Assisted Program Compliance Reviews

Compliance reviews of federally conducted and assisted programs will be conducted to ensure all the elements identified in Section 5b, *Mandatory Elements*, of this DR, are being carried out efficiently and effectively. In addition, the review will examine the process and procedures established to ensure activities are being carried out in a non-discriminatory manner.

8. OASCR COMPLIANCE REVIEW OF MISSION AREAS, AGENCIES, AND STAFF OFFICES

OASCR is responsible for regularly and systematically monitoring and evaluating its policies, procedures and practices to ensure there is no unlawful discrimination and there is an equal opportunity to participate in agencies’ programs and activities.

At its discretion, OASCR will conduct compliance reviews of Mission Areas, agencies, and staff offices in accordance with all sections identified above. OASCR may, at its discretion, conduct employment compliance reviews or compliance reviews of all the programs and activities administered by a USDA sub-component\ Over the course of a fiscal year, OASCR may conduct a combination of types of compliance reviews in the context of a compliance review schedule.

- a. OASCR will be guided by the policies, legal standards and requirements that have been established in Federal statutes, Executive Orders, regulations, case law and non-discrimination.

- b. OASCR will ensure Findings of its compliance reviews will be provided to the director of the reviewed Mission Area, agency, or staff office no later than 90 calendar days after completion of review. A copy of the report will also be provided to the reviewed entity's Civil Rights Director.

9. ENFORCEMENT OF COMPLIANCE REQUIREMENTS

The Mission Area, agency, or staff office's submission of referral of non-compliance, is reviewed by OASCR for completeness and efforts at securing voluntary compliance, and the Assistant Secretary for Civil Rights (ASCR) may:

- a. Issue a notice of opportunity to the recipient or applicant to request a hearing per [7 CFR Part 15](#), *Nondiscrimination* and, if a hearing is requested, arrange for the designation of an administrative law judge to preside over any such hearing; or
- b. Authorize actions per [7 CFR § 15.8\(a\)](#), *Procedures for Effecting Compliance* which identifies steps to take if there appears to be a failure or threatened failure to comply including, but not limited to:
 - (1) A referral to the Department of Justice (DOJ) with a recommendation that appropriate proceedings be brought to enforce any rights of the United States under any law of the United States, or any assurance or other contractual undertaking, with copies to the OGC as appropriate;
 - (2) Consulting or seeking assistance from other Federal agencies; and
 - (3) A referral back to the Mission Area, agency, or staff office with direction to engage in additional [DR 4710-001](#), *Alternative Dispute Resolution* efforts.
- c. Take Action to Terminate or Suspend Assistance
 - (1) Any action to suspend or terminate assistance must be limited to a particular recipient or sub-recipient against whom the finding of non-compliance has been made and must be limited in its effect to the particular program, or part thereof, on which non-compliance has been found;
 - (2) The Office of the General Counsel (OGC) will conduct a legal sufficiency review of the Report and Findings of Non-compliance and provide comments or recommendations to the OASCR for tracking or monitoring;
 - (3) General conditions for termination or suspension of assistance by USDA must not become effective until all administrative responsibilities are met by:
 - (a) Documenting the finding after an opportunity for a hearing, the recipient or sub-recipient has failed to comply with the requirements of this DR and other applicable policies and procedures;

- (b) Ensuring the Secretary has approved the action per [7 CFR § 15.10\(e\)](#), *Decision by the Secretary*; and
 - (c) Ensuring 30 calendar days have passed since the Secretary has filed a written report of the circumstances and the grounds for such action with the committee of the House and committee of the Senate that have legislative jurisdiction over the program involved.
- (4) After final termination is approved by the Secretary, the Mission Area, agency, or staff office must prepare a letter to the appropriate officials for the termination of the financial assistance. OASCR must be notified if the recipient or sub-recipient reapplies for assistance and, upon agreement with OASCR, conduct a pre-approval onsite review.
- d. Mission Areas, agencies, and staff offices provide corrective action plans to address any non-compliance based on the non-compliance requirements above.
 - e. Areas of non-compliance in a Mission Area, agency, and staff office that are not brought into compliance status by the designated date are elevated to the OGC and the Secretary of Agriculture's (Secretary) office for further actions.

10. FINAL OASCR DECISION

When OASCR issues a non-compliance notice of findings to the Mission Area, agency, or staff office (final OASCR decision), the notice will cite the corrective actions the Mission Area, agency, or staff office must take to achieve compliance. The notice of findings will include information about the Mission Area, agency, or staff office's rights and timelines for response.

OASCR will monitor and evaluate efforts to remedy a non-compliance finding to ensure compliance is consistent with applicable civil rights and equal opportunity requirements and will conduct the following actions:

- a. Refer the report of non-compliance to OGC. Upon completion of the OGC review, if applicable, OGC will return the report and notice of findings, with any comments or recommendations, to the OASCR for tracking or monitoring. The report will be issued to the Mission Area, agency, or staff office head.
- b. Simultaneously send copies of the Non-Compliance Notice of Findings to:
 - (1) The USDA General Counsel;
 - (2) The appropriate Under or Assistant Secretary;
 - (3) The Assistant Secretary for Administration; and
 - (4) The Deputy Secretary.

11. INSTRUCTIONAL MANUAL

OASCR will prepare and disseminate within OASCR and to Mission Area, agency, and staff office civil rights offices manuals, bulletins, and other instructional documents as necessary to implement the provisions of this DR.

12. ROLES AND RESPONSIBILITIES

a. The Secretary will:

- (1) Provide leadership;
- (2) Set overall civil rights policy and ensure civil rights compliance and enforcement throughout the Department; and
- (3) Ensure the availability of resources adequate to support and carry out a broad range of civil rights compliance and enforcement activities throughout the Department.

b. The ASOCR will:

- (1) Provide overall leadership, coordination, and direction for USDA civil rights compliance;
- (2) Issue Departmental directives as necessary to ensure the Department fully achieves its civil rights compliance obligations;
- (3) Ensure through training, dissemination of information, technical assistance, and other appropriate methods that recipients are apprised of their civil rights compliance responsibilities;
- (4) Ensure recipients actively support and adhere to Federal civil rights laws and USDA's regulations and policies, including any findings, and decisions rendered by the Mission Areas, agencies, and staff offices;
- (5) Systematically review, evaluate, and hold to a high accountability standard the civil rights compliance performance of agency heads and administrators;
- (6) Require Mission Areas, agencies, and staff offices to provide an annual listing of proposed fiscal year compliance reviews or desk audits. This listing will be provided to OASCR no later than October 31st each fiscal year;
- (7) Select by November 30th of each fiscal year two or three Mission Areas, agencies, or staff offices' compliance activity to monitor and oversee;
- (8) Conduct a Mission Area, agency, or staff office's compliance review, desk audit or fact-finding review based on current events, issues identified through Civil Rights

Impact Analysis, Congressional reviews or items identified in Section 5a, *Criteria*, of this DR; and

- (9) Develop and implement a comprehensive civil rights strategic plan that encompasses the full scope of the Department's civil rights compliance obligations and supplemented by an annual operating plan for compliance strategy accomplishments through Mission Area, agency, and staff office periodic compliance reviews, audits or fact-finding evaluations, and disseminating the plan throughout the Department.

c. Under Secretaries and Agency Heads will:

- (1) Establish and maintain an effective, proactive civil rights compliance program per the policies, guidelines, and directives promulgated by OASCR;
- (2) Provide adequate and appropriately trained and qualified staff, and other resources as necessary to ensure efficient and effective accomplishment of the Department's civil rights obligations;
- (3) Timely collect and make available all data and information as necessary to enable an efficient and effective evaluation of the Department's civil rights compliance programs, processes, and activities; and
- (4) Cooperate with and provide assistance as necessary in the examination of any compliance reviews, including ensuring access to information and the resolution of any issues of noncompliance.

d. Mission Area, Agency, and Staff Office Civil Rights Directors will:

- (1) Ensure sufficient funding for conducting reviews;
- (2) Ensure sufficient staffing for conducting reviews;
- (3) Provide oversight on all compliance reviews;
- (4) Incorporate compliance review activities in Mission Area, agency, and staff office annual strategic plans;
- (5) Identify programmatic strengths or opportunities for improvement;
- (6) Timely implement corrective actions;
- (7) Prepare written reports for the Mission Area, agency, or staff office Head per applicable laws; and
- (8) Ensure that any of its recipients for which there is a noncompliance finding, timely and effectively implements all corrective action plans determined necessary to secure compliance with a Federal civil rights requirement.

13. INQUIRIES

All Mission Areas, agencies, and staff offices will direct questions and inquiries regarding this DR to the Center for Civil Rights Operations (CCRO) Compliance Division via email at CCROCompliance@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

ABA	Architectural Barriers Act of 1968
ASCR	Assistant Secretary for Civil Rights
ADA	Americans with Disabilities Act of 1990
ADAAA	Americans with Disabilities Act Amendments Act of 2008
CCRO	Center for Civil Rights Operations
CFR	Code of Federal Regulations
DG	Departmental Guidebook
DM	Departmental Manual
DOJ	Department of Justice
DR	Departmental Regulation
EO	Equal Opportunity
EEO	Equal Employment Opportunity
EEOC	Equal Employment Opportunity Commission
LEP	Limited English Proficiency
MD	Management Directive
NFE	Non-Federal Entity
OASCR	Office of the Assistant Secretary for Civil Rights
OGC	Office of the General Counsel
OIG	Office of the Inspector General
P.L.	Public Law
Secretary	Secretary of Agriculture
SNAP	Supplemental Nutrition Assistance Program
TTY	Teletypewriter
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Accessibility. When a person with a disability is afforded the opportunity to acquire the same information, engage in the same interactions, and enjoy the same services and benefits of employment as a person without a disability.

Accountability. The obligation of holding agency officials, managers, supervisors, and other employees responsible for complying with the requirements contained in this DR. (Source: USDA, [Departmental Guidebook \(DG\) 0100-002](#), *USDA Departmental Directives Definitions Glossary*)

Agency. Organizational units of the Department, other than staff offices, whose heads report to officials within the Office of the Secretary, Deputy Secretary, Under Secretaries, Assistant Secretaries, and Assistant to the Secretary. (Source: USDA, [DR 0100-001](#), *Departmental Directives System*)

Agency Heads and Administrators. The administrator, chief, or director of an agency who is the official named or designated to have primary responsibility for the management of the agency as delegated under [7 CFR Part 2](#), *Delegations of Authority by the Secretary of Agriculture and General Officers of the Department*. (Source: USDA, DG 0100-002)

Applicant. A person or entity who requests or seeks USDA employment or program benefits and services. (Source: USDA, DG 0100-002)

Assistance Animal. An assistance animal is an animal that works, provides assistance, or performs tasks for the benefit of a person with a disability, or that provides emotional support that alleviates one or more identified effects of a person's disability. An assistance animal is not a pet. There are three types of assistance animals: service, therapy, and emotional support.

Basis. The ground(s) upon which an aggrieved person or complainant alleges that a USDA official or employee has engaged in prohibited discriminatory behavior. (Source: USDA, DG 0100-002)

Beneficiary. A person or group of persons with an entitlement to receive or utilize the benefits, services, resources, and information, or participate in activities and programs conducted or funded in whole or in part by USDA. (Source: USDA, DG 0100-002)

Calendar Days. The period of 24 consecutive hours commencing at 12:01 a.m. and concluding at midnight, including holidays and weekends.

Complainant. Any person or group of persons who files with any USDA agency a complaint that alleges discrimination in a program or activity conducted by any USDA agency. A complainant must be the injured party. Accordingly, if any person or organization files a

discrimination complaint on behalf of an injured party, the injured party must affirmatively state his or her willingness to pursue the complaint or the case will be dismissed. (Source: USDA, DG 0100-002)

Complaint. A written statement (except as provided below) that contains the complainant's name and address and describes an Agency's alleged discriminatory action in sufficient detail to inform OASCR of the nature and date of an alleged civil rights violation. The statement must be signed by the complainant(s) or someone authorized to sign on behalf of the complainant(s). The complaint does not need to be written or signed if it is submitted in an alternate format to accommodate the complaint filing needs of a person who has an LEP, a disability, or other special need. (Source: USDA, DG 0100-002)

Compliance. Adherence to laws, regulations, guidelines, and specifications relevant to its business processes.

Compliance Program. A set of internal policies and procedures which ensures adherence to Federal laws, rules, and regulations.

Compliance Review. A USDA systematically planned and regularly initiated investigation that assesses and evaluates the civil rights and equal opportunity policies, procedures and practices of a USDA agency or instrumentality to determine compliance with civil rights statutes, regulations, standards, and policies. Compliance reviews will be initiated upon consideration of several factors, including, authorization; evidence of existing violations; level and type of complaints over time; issues arising from complaints that indicate the need for a more systematic review; previous consent decrees and settlement agreements; and relation to implementation of Departmental policies. They will be conducted per a written administrative plan containing specific neutral criteria and other factors as identified by CR. (Source: USDA, DG 0100-002)

Conducted Programs. Program services, benefits or resources delivered directly to the public by USDA employees. (Source: USDA, DG 0100-002)

Corrective Action Plan. Describes the actions to be taken to resolve noncompliance with Civil Rights regulations, instructions, policies, and guidelines.

Departmental Regulation (DR). Promulgate Departmental policy; delegate authority; establish responsibility; establish statutory or interagency committees; and/or prescribe high-level procedures governing USDA activities and operations. DRs also may include selected material of an administrative nature that is published in the *Federal Register* or the Code of Federal Regulations. DRs must be reviewed and revised or reissued at least every 5 years to ensure they remain aligned with current applicable statutory, regulatory, and/or policy requirements. (Source: USDA, DR 0100-001)

Desk Audit. A process to evaluate the compliance of a Mission Area, agency, staff office or USDA recipient's civil rights and equal opportunity responsibilities per Federal civil rights law and USDA civil rights regulations and policies. The desk audit is not conducted on-site or in person, but can be conducted by telephone, video conferencing, Teams, virtually, etc., which

allows the auditee to describe and provide illustrative examples of its process or procedures, i.e., electronically, by fax, email, or hardcopy.

Discrimination. Different treatment or denial of benefits, services, rights or privileges to a person or persons because of their race, color, religion, sex, age, national origin, marital status, familial status, parental status, disability, political belief or affiliation or because all or a part of an individual's income is derived from any public assistance program. (Source: USDA, DG 0100-002)

Federal Financial Assistance. (Source: [2 CFR § 200.40](#), *Federal financial assistance*)

1. Federal financial assistance means assistance that a non-Federal entity (NFE) receives or administers in the form of:
 - a. Grants;
 - b. Cooperative agreements;
 - c. Non-cash contributions or donations of property (including donated surplus property);
 - d. Direct appropriations;
 - e. Food commodities; and
 - f. Other financial assistance (except assistance listed in paragraph (2) of this section).
2. For [2 CFR § 200.203](#), *Requirement to provide public notice of Federal financial assistance programs* and Subpart F – *Audit Requirements*, Federal financial assistance also includes assistance that NFEs receive or administer in the form of:
 - a. Loans;
 - b. Loan Guarantees;
 - c. Interest subsidies; and
 - d. Insurance.
3. Federal financial assistance does not include amounts received as reimbursement for services rendered to individuals as described in [2 CFR § 200.502](#), *Basis for determining Federal awards expended*, paragraphs (h) and (i).

Federally Assisted Programs and Activities. Programs and Activities of an entity that receives Federal financial assistance. “Assistance” or “benefits” refers to the transfer of money, property, services, or anything of value, the principal purpose of, which is to accomplish a public purpose

of support or stimulation authorized by Federal statute. Assistance includes, but is not limited, grants, loans, loan guarantees, scholarships, mortgage loans, insurance, and other types of financial assistance, including cooperative agreements; property, technical assistance, counseling, statistical, and other expert information; and service activities of regulatory Agencies. It does not include the provision of conventional public information services. (Source: USDA, DG 0100-002)

Field Office. All offices other than headquarters offices. Included are regional, State, area, district, and local offices (including USDA Service Centers), whether their function is program delivery, administrative or special purpose, e.g., technical support or research. (Source: USDA, DG 0100-002)

Letter of Finding. A written notice to the recipient and signed by the Assistant Secretary for Civil Rights (ASCR), USDA Office of the Assistant Secretary for Civil Rights (OASCR), that officially advises of the findings of a complaint or compliance review investigation and, where appropriate, identifies the actions the recipient must take to correct a violation or otherwise secure compliance with one or more Federal civil rights requirements. (Source: Adapted from USDA, DG 0100-002)

Mission Area. A group of agencies with related functions that report to the same Under or Assistant Secretary. (Source: USDA, DR 0100-001)

Non-compliance Finding. When the facts disclosed during an investigation or compliance review, or other information, indicate a failure to comply with regulatory provisions.

Recipient. A non-Federal entity that receives a federal award directly from a Federal awarding agency to carry out an activity under a Federal program. The term recipient does not include sub recipients. (Source: [2 CFR § 200.86](#), *Recipient*)

Secretary. Secretary of Agriculture. (Source: USDA, DG 0100-002)

Staff Office. Departmental administrative offices whose heads report to officials within the Office of the Secretary. (Source: USDA, DR 0100-001)

Subrecipient. A non-Federal entity that receives a subaward from a pass-through entity to carry out part of a Federal program; but does not include an individual that is a beneficiary of such program.

Voluntary Resolution Agreement. A voluntary agreement which resolves a complaint or compliance review issue wherein USDA or one of its agencies agrees to effect corrective or remedial action before or after USDA's official determination. (Source: USDA, DG 0100-002)

APPENDIX C
AUTHORITIES AND REFERENCES

Age Discrimination Act of 1975, as amended, [42 United States Code \(U.S.C.\) §§ 6101 et seq.](#)

Age Discrimination in Employment Act of 1967, as amended, [29 U.S.C. § 621](#)

Americans with Disabilities Act of 1990 (ADA), as amended, [42 U.S.C. §§ 12101 et seq.](#), *Equal Opportunity for Individuals with Disabilities*

Americans with Disabilities Act Amendments Act of 2008 (ADAAA), [Public Law \(P.L.\) 110-325](#), September 25, 2008

Architectural Barriers Act of 1968 (ABA), [42 U.S.C. §§ 4151 et seq.](#)

Basis for determining Federal awards expended, [2 CFR § 200.502](#)

Civil Rights Restoration Act of 1987, [P.L. 100-259](#), March 22, 1988

Civil Rights Act of 1991, [P.L. 102-166](#), November 21, 1991

Compliance Procedures, [28 CFR Part 35, Subpart F](#)

Coordination of Enforcement of Nondiscrimination in Federally Assisted Programs, [28 CFR Part 42 Subpart F](#)

Decisions and notices, [7 CFR § 15.10\(e\)](#), *Decision by the Secretary*

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